

Restrictive Covenant - Preliminary Legal Analysis

Matter HC-2025-0142 | Northstar Analytics Inc.

Matter ID	HC-2025-0142
Client	Northstar Analytics Inc.
Date	2025-03-28
Document Type	legal_research_memo
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Confidentiality	client-confidential

Question Presented

Whether Northstar is likely to obtain preliminary injunctive relief enforcing Carter's twelve-month, fifty-mile non-competition covenant.

Short Answer

Relief is plausible but uncertain. Franklin courts scrutinize geographic restrictions where the employee's customer relationships are not geographically confined. The six-month customer non-solicitation covenant is materially narrower and presents a stronger enforcement argument.

Analysis

Carter worked with national accounts, which weakens Northstar's argument that a fifty-mile radius tracks the actual competitive risk. A court could narrow or decline to enforce the geographic restriction while still protecting confidential information and specific customer relationships.

The strongest evidence for immediate relief would be proof that Carter solicited Northstar customers or retained confidential pricing material. Mere employment by Vertex, standing alone, may not establish irreparable harm.